

regard to its constitution and its rights against its shareholders (c).]

39. **Greek bonds.** — Where a testator directed all his property, except ready money or monies in the *funds*, to be converted, and the proceeds to be invested in Three per cent. Consols or *other Government securities in England*, it was held that *Greek bonds*, though guaranteed by this country, were not comprehended in the words “*funds*,” and that they ought to be converted, though the Court disavowed any intention of saying that bonds of that description might not, in other cases, be deemed Government securities (d).

40. **Colony or foreign country.** — A power to invest on “the bonds, debentures, or other securities, or the stocks or funds of any *colony or foreign country*,” will not authorize an investment upon the Preference Bonds of a *Foreign Railway Company*, though a sinking fund for paying off the capital expended, and the payment of the interest in the meantime, are guaranteed by the foreign government (e).

[41. **Colonial stock.** — By the Colonial Stock Act, 1877 (f), trustees are not to apply for or hold stock certificates payable to bearer issued under that Act, unless expressly authorised to do so by the terms of their trust.]

42. **East India stock.** — Government or Parliamentary stocks or funds are such as are managed by Parliament, or paid out of the revenues of the British Government, or at least guaranteed by it, and therefore *East India stock*, under the charter of the East India Company, as possessing none of these requisites, was never a *Government stock* (g); where trustees are empowered to invest “in such mode or modes of investment as they in their uncontrolled discretion shall think proper,” they cannot be made personally liable for investments made *bonâ fide* in the purchase of bonds of a foreign government, bonds of a colonial railway company,

[(c) *New London and Brazilian Bank v. Brocklehurst*, 21 Ch. D. 302.]

(d) *Burnie v. Getting*, 2 Coll. 324.

(e) *Re Langdale's Settlement Trusts*, 10 L. R. Eq. 39. As to investments by the Court on foreign

securities, as Italian, see *In re Brackenbury's Trusts*, 31 L. T. N. S. 79; 22 W. R. 682.

[(f) 40 & 41 Vict. c. 50, s. 12.]

(g) *Brown v. Brown*, 4 K. & J. 704.